

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION EXPRESSING THE SUPPORT OF THE GOVERNING BODY FOR CITY STAFF TO REVIEW AND REWRITE THE CITY'S PARKING ORDINANCES FOR THE PURPOSE OF INTRODUCING PAID ON-STREET PARKING IN DOWNTOWN CHEYENNE AND DIRECTING CITY STAFF TO SUBMIT THE ORDINANCE REWRITE FOR GOVERNING BODY CONSIDERATION."

WHEREAS, in October of 2023, through Resolution No. 6359, the Governing Body directed the Cheyenne Police Department to conduct a study exploring the transition to a professional services model for downtown parking. The resolution described the current parking program as "vertically integrated" and questioned whether the Police Department had "sufficient resources to administer the downtown parking program without some form of additional assistance[;]"

WHEREAS, Resolution No. 6359 also asserted that "transitioning to a contract or a professional services model should bring unrealized efficiencies to parking downtown and to the downtown parking program, notably, through enhanced enforcement resources, which may assist the City in better collecting fines imposed for parking violations." The Resolution further stated that "[r]egrettably, the collection of parking ticket fines has proved challenging with the outstanding balance of unpaid parking tickets for fiscal year 2023 equaling approximately two hundred fifty thousand dollars (\$250,000.00) [;]"

WHEREAS, the Cheyenne Police Department completed the required study and submitted its findings to the Governing Body on December 11, 2023. The study explored multiple private parking companies, included reviews of several municipalities' approaches to parking regulation from the region and nation, and included interviews with parking managers, directors and consultants;

WHEREAS, of the private parking firms contacted, LAZ Parking was the only company to provide an estimate of cost. LAZ Parking is a parking management, transportation and mobility company. LAZ Parking recommended a parking program that was nearly identical to the City's current program, but with lower-paid employees and significantly higher administrative costs. This led the Police Department to conclude that the current parking program model offers the citizens of Cheyenne a better service that is not profit-driven and which is at a lower cost than that available through private contracts;

WHEREAS, the City of Cheyenne currently collects parking ticket fines from ninety-one percent (91%) of tickets issued, which is substantially better than the six (6) other communities evaluated in the study. Of note, in the proposal provided from LAZ Parking, the company promised a seventy percent (70%) fine collection rate;

WHEREAS, based on the Cheyenne Police Department's continued research of parking best practices and how the City's parking program may be improved, the Department made several recommendations, many of which are already being implemented;

WHEREAS, the Cheyenne Police Department has begun working in conjunction with the City Attorney's Office and the Governing Body to make the parking ordinances clearer and more concise while ensuring due process protections are maintained for the benefit of the general public. Furthermore, the Department is requesting funds in the next fiscal year's budget to transfer one of the Department's part-time parking enforcement positions to a full-time position. In addition, the Department's parking administration manager has secured membership with the National Parking Association, a national trade association that promotes and supports parking industry research, education and advocacy. Through this membership, the administration manager is taking advantage of contacts and resources to help better evaluate employee job descriptions, titles, uniforms, and vehicle decals as well as developing an established best practices training program;

WHEREAS, the Mayor of the City of Cheyenne and Director of the Community Recreation and Events Department have already worked to hire a private security firm, Signal Security, to provide overnight security patrols at the Jack Spiker Parking Structure. This initiative has already proven to be an extremely effective addition to the already over 1,100 patrols conducted by the Cheyenne Police Department in the garage annually. The Community Recreation and Events Director has also researched and received several quotes for security access gates to be installed at the parking structure and is working with Passport, which provides the City's parking management software, to ensure any additions of access gates are compatible with the current parking software. In the time since the study required under Resolution No. 6359, the Cheyenne Police Department has also begun community engagement regarding downtown parking by speaking with a downtown business owner group and registering for an upcoming town hall. The Department will continue to seek out other such engagement opportunities;

WHEREAS, several other items of concern were noted in the study, such as "block face" parking language in City ordinance being confusing, and a lack of other options for businesses that would benefit from a broader range of parking plans other than "two-hour." Other concerns centered on an inability to efficiently track parking behavior and downtown traffic patterns, and to address other modern parking concerns due to the rigidity of the current two-hour parking regulations. All of these issues could be addressed by taking the advice recently provided to the neighboring cities of Fort Collins and Loveland by Walker Consulting of providing paid on-street parking;

WHEREAS, paid on-street parking has been supported by the majority of attendees at a recent meeting of downtown business owners attended by the Cheyenne Police Department. In fact, in a recent survey of 102 downtown stakeholders, more respondents either supported or strongly supported the proposal of paid on-street parking than did not support such a proposal; and

WHEREAS, a paid on-street parking program, where pricing and zoning are established by governing body resolution, would provide flexibility on parking options for businesses and consumers while still encouraging parking turnover by providing less expensive options in the parking garages. An app-based paid on-street parking program will help drive downtown economic growth by creating more parking turnover and incentivizing more voluntary compliance with City parking regulations.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that City staff are directed to conduct a review and re-write of the City of Cheyenne parking ordinances to allow for the use of app-based paid on-street parking to be presented to the governing body for consideration at a later date; and

BE IT FURTHER RESOLVED, that the ordinance changes required in accordance with this resolution shall provide for the establishment of pricing and zoning by governing body resolution, taking into consideration relevant parking data, community input, and industry best practices.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk